

**Calendar line 9**

**Case Name:** *Philip A. Robb, as Trustee et al. v. Carol Cedar-Applebaum, et al.*

**Case No.:** 25CV467980

**PLAINTIFFS' MOTION TO DETERMINE VALUE AND SEND BUYOUT NOTICE**

Plaintiffs seek an order determining the fair market value of ten apartment properties that are the subject of this partition action and directing issuance of buyout notices pursuant to the Partition of Real Property Act ("PRPA"), including Code of Civil Procedure sections 874.316 and 874.317.

Plaintiffs rely on appraisals previously obtained and request that the Court adopt those valuations pursuant to Evidence Code section 813. Alternatively, Plaintiffs request that, if additional appraisal is required, the Court appoint Michael Chapman to conduct the valuation and proceed with the PRPA buyout process.

Defendants oppose the motion, arguing primarily that (1) Plaintiffs' appraisals are now more than one year old and do not reflect current market conditions; (2) the parties have agreed to participate in mediation and a court determination of value at this juncture would unnecessarily complicate and impair that process; and (3) Plaintiffs' proposed appraiser is not sufficiently neutral and the prior appraisal contains various alleged errors, omissions, and methodological deficiencies. Defendants also raise issues concerning allocation of appraisal costs and the proposed payment deadlines.

The Court declines to adopt the existing appraisals or appoint a valuation expert at this time.

The PRPA establishes a statutory procedure designed to permit co-owners of real property to resolve ownership disputes through a buyout process before a sale occurs. The valuation of the property is an important component of that process. However, the statute does not require the Court to adopt a party's valuation submission where the valuation is disputed, nor does it preclude the Court from managing the timing of the valuation process in a manner that promotes efficient resolution of the action.

Here, the parties have represented that they have agreed to participate in mediation. The Court finds that allowing the parties an opportunity to explore resolution before undertaking a court-directed valuation process is reasonable and consistent with the purposes of the PRPA. A judicially imposed valuation at this stage, particularly one based upon competing views regarding the reliability and currency of the appraisal evidence, may unnecessarily increase costs and create additional issues for the parties to litigate during mediation.

The Court also notes that the existing appraisals will have further aged by the time the statutory buyout process proceeds. Given the number of properties involved, the significant value at issue, and the parties' competing positions regarding methodology and neutrality, the Court is not persuaded that Plaintiffs' proposed appraiser should be selected without further consideration.

Accordingly, the Court will continue the motion to permit completion of the mediation process.

If the parties are unable to resolve their disputes through mediation, the Court will thereafter consider the appropriate valuation procedure, including whether appointment of a neutral appraiser is warranted, the scope of the appraisal, allocation of appraisal costs, and the appropriate deadlines and procedures for any buyout notices under the PRPA.

In the event the parties have not resolved their disputes through mediation, counsel shall meet and confer regarding the selection of a mutually acceptable neutral appraiser and shall submit a proposed stipulation regarding the appointment of a neutral appraiser, including the scope of the appraisal, allocation of appraisal costs, and any proposed modifications to the statutory buyout procedures. If the parties are unable to reach agreement, each side shall identify its proposed appraiser(s) and provide the Court with a brief statement regarding the qualifications and basis for selection of the proposed neutral by August 31, 2026 (unless further ordered by the Court.)

The parties shall appear on September 9, 2026 to provide an update regarding the status of mediation and, if necessary, appointment of appraiser.

The Court's intent is not to delay resolution of the partition action, but rather to permit the parties a reasonable opportunity to resolve their dispute before incurring the substantial costs associated with a court-directed valuation of ten separate properties.

IT IS SO ORDERED.

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